

25CV07301 Theresa Colosi, MD vs Montecito Bank & Trust MBT et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-06-05

Motion: CMC; Demurrer and Motion to Strike; Motion: Change Venue; Motion: Vexatious Litigant

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25cv07301>

Source SHA-256: 5b4b52f88b6f53368f346e884a441eb5b1c3581a5087789df74353e205554af6

Tentative Ruling: Theresa Colosi, MD vs Montecito Bank & Trust MBT et al

Case Number

25CV07301

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 06/05/2026 - 10:00

Nature of Proceedings

CMC; Demurrer and Motion to Strike; Motion: Change Venue; Motion: Vexatious Litigant

Tentative Ruling

For all reasons stated herein:

(1) Defendant Montecito Bank and Trust's (MBT) motion for order declaring plaintiff Theresa Colosi (Colosi) a vexatious litigant, requiring plaintiff Colosi to furnish security, and barring plaintiff Colosi from filing further actions in propria persona without leave of court is granted. On or before July 6, 2026, plaintiff Colosi shall furnish a security for the benefit of MBT in the amount of \$15,000.

(2) Defendant California Medical Board's motion to transfer venue is continued to July 10, 2026, at 10 a.m. in this department. This action shall remain stayed for all other purposes pending the resolution of the motion to transfer venue and the furnishing of security by plaintiff Colosi.

(3) Defendant MBT's demurer to complaint is continued to August 28, 2026, at 10 a.m. in this department.

(4) Defendant MBT's motion to strike is continued to August 28, 2026, at 10 a.m. in this department.

Background:

(1) Underlying Criminal Proceeding

The following background is summarized from the October 13, 2023, minute order

entered by this court in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591 (Interpleader Action). (See MBT Compendium of Exhibits in Support of Its Motion for Security [Compendium], Ex. 1.)

Starting in May 2019, defendant Cynthia Hann (Hann) was designated and hired to supervise Colosi's scheduled visitations with her son, John Doe. (Compendium, Ex. 1 at p. 2.) On December 8, 2019, Hann was scheduled to supervise a 3-hour visit between Colosi and John Doe. (Ibid.) Hann, John Doe, and Colosi initially met at a coffee shop in Santa Barbara. (Ibid.) Colosi then asked to spend the remainder of the time together at Zodo's Bowling and Beyond (Zodo's) in Goleta. (Ibid.) After arriving at Zodo's, and while still in the parking lot, Colosi suddenly attacked Hann by repeatedly striking her on the head with a metal CO2 canister. (Ibid.)

On December 23, 2019, Colosi was charged with five counts, including (1) Count 1, attempted murder [Pen. Code, §§ 664/187(a)], a felony, (2) Count 2, assault with a deadly weapon [Pen. Code, § 245(a)(1)], a felony, (3) Count 3, attempted kidnapping of a child under 14 [Pen. Code §§ 664/207(a)/(e)], a felony, (4) Count 4, attempted child stealing [Pen. Code, §§ 664/278], a felony, and (5) Count 5, disobeying domestic relations court order [Pen. Code § 273.6(a)], a misdemeanor. (People v. Colosi, Santa Barbara Superior Court Case No. 19CR12190 [Underlying Criminal Proceeding].) (Compendium, Ex. 1 at p. 2.)

Colosi eventually pleaded guilty to assault with personal use of a deadly weapon, a felony, and admitted the special allegation of causing great bodily injury. (Compendium, Ex. 1 at pp. 2–4.) In return, the remaining counts were dismissed and a sentence of five years imprisonment imposed. (Ibid.)

(2) Interpleader Action

Colosi had planned to abduct John Doe and flee, and had previously chartered a

private plane to fly them from Lompoc to Montana. (Compendium, Ex. 1 at p. 2.) However, Hann and John Doe were able to escape and run into Zodo's until the police and paramedics arrived. (Ibid.) Colosi fled from the premises, and did in fact take the private jet from Lompoc to Montana. (Ibid.) Colosi was eventually arrested by Montana authorities and extradited to Santa Barbara. (Ibid.)

Before fleeing to Montana, Colosi, who had accounts with MBT, purchased approximately \$1.3 million of cashier's checks from MBT. (Compendium, Ex. 1 at pp. 2-3.) The checks were seized by law enforcement. (Ibid.) On November 17, 2022, MBT filed the Interpleader Action to deposit with the Court the funds that MBT was holding to back the checks. (Id. at p. 3.)

On June 2, 2023, Colosi filed a document styled, "Response and Opposition to Interpleader, Request for Permanent Injunction." (Compendium, Ex. 18.) Colosi generally alleged that MBT provided information about her financial accounts and purchase of cashier's checks to law enforcement in response to a search warrant, which prosecutors then used against her

in criminal proceedings. (Id. at p. 2.) She accused MBT of fraudulently depositing the interpleaded funds with the court. (Id. at p. 4.)

On June 12, 2023, Colosi filed a motion for permanent injunction. (Compendium, Ex. 19.) Colosi contended that MBT was violating her constitutional rights and various financial privacy statutes, but offered no plausible argument in support of the motion. (Ibid.) The court denied Colosi's motion for injunction because it was procedurally improper and unsupported by evidence. (Compendium, Ex. 21.)

On August 10, 2023, Colosi filed a motion to compel responses to requests for production and requested sanctions in the amount of \$24,000. (Compendium, Ex. 27.) On September 12, 2023, Colosi filed a motion to dismiss the Interpleader Action. (Compendium, Ex. 23.) The motion to dismiss sought orders dismissing the interpleader action, restoring the transferred funds, and sealing all records in the action. (Ibid.) The motion was based upon the argument, in part, that Colosi's financial privacy rights were violated and had not been waived. (Ibid.) On September 29, 2023, Colosi issued four subpoenas for in-person testimony and the production of documents, to four MBT personnel. (Compendium, Ex. 28.) Colosi then issued another two subpoenas to MBT personnel for appearance and the production of documents on October 13, 2023. (Compendium, Ex. 29.)

On October 13, 2023, this court denied Colosi's motion to compel and motion to dismiss, finding that, "Colosi's document request was improperly propounded within the interpleader action." (Compendium, Ex. 1 at p. 21.) This court noted, "[n]one of the information Colosi seeks has even the remotest of relevance to any issue in the interpleader action." (Id. at p. 22.) This court also ordered that no appearances or production were required, because there was "no legitimate reason to subpoena witnesses for appearance at the current civil law and motion proceedings." (Id. at p. 20.) The court further ruled, "[b]ecause the Court has determined that this is an appropriate action for interpleader of the funds, because MBT has disavowed any claim to the funds, and because MBT has followed the proper procedures for interpleader of the funds, the Court will grant the motion for discharge" (Id. at p. 18.)

On November 1, 2023, the court issued an order following the October 13 hearing and granted MBT's motion for discharge of liability with respect to the interpleaded funds and denied Colosi's motion to dismiss. (Compendium, Ex. 2.) The court ruled that MBT's action was a "classic circumstance for interpleader." (Compendium, Ex. 1 at p. 17.) The court's ruling "discharged [MBT] from all liability on or arising out of the rights and obligations of the parties to this action with respect to the \$1,345,454.33 deposited with the clerk of this Court and Plaintiff's cashier's checks associated with those funds...." (Compendium, Ex. 2 at p. 2.)

Colosi later subpoenaed Rafael Gonzalez, counsel for MBT in the Interpleader Action, to testify at the trial on claims to the interpleaded funds, and demanding that he produce the same or similar documents Colosi had requested in earlier subpoenas. (Compendium, Ex. 30.) On June 10, 2024, this court quashed this subpoena. (Compendium, Ex. 31.)

On November 3, 2025, Colosi filed a motion to set aside all judgments and orders of the trial court and to order MBT to restore Colosi's property at issue in the Interpleader Action. (Compendium, Ex. 5.) Colosi argued, among other points, that her financial privacy rights were violated in the Underlying Criminal Proceeding as to a search warrant served on MBT. (Ibid.)

On November 10, 2025, Colosi served four more subpoenas in the Interpleader Action, demanding testimony and documents from MBT's President and CEO, and three board members of MBT, at the hearing on her motion to set aside judgments and orders. (Compendium, Ex. 6.) This court quashed these subpoenas as improper and lacking good cause. (Compendium, Ex. 7 at p. 5.) The court also denied Colosi's motion in the context of reconsideration because, "Colosi cites no new or different facts, circumstances, or law, and no basis on which the court would revisit any of its orders." (Id. at pp. 6–7.)

(3) The Hann Action

On June 5, 2020, Hann filed a civil complaint against Colosi for civil assault and battery, intentional infliction of emotional distress, and fraudulent transfer, styled Cynthia Hann v. Theresa Colosi, Santa Barbara Superior Court Case No. 20CV1984

(the Hann Action). After MBT was discharged from the Interpleader Action, Colosi filed cross-complaints in the Hann Action against MBT: a cross-complaint on April 19, 2024 (Compendium, Ex. 8); a first amended cross-complaint on June 11, 2024 (Compendium, Ex. 9); and a second amended cross-complaint (SACC) on March 3, 2025 (Compendium, Ex. 10). The causes of action against MBT in the SACC were premised on the allegations that MBT disclosed private information in response to a search warrant executed by the Santa Barbara County Sheriff directing MBT to turn over Colosi's financial records, which allegedly led to Colosi's arrest, conviction, and imprisonment. (Ibid.)

On September 29, 2025, the Court dismissed the SACC with prejudice following MBT's demurrer. (Compendium, Ex. 13.) With respect to Colosi's claims based on the search warrant in the Underlying Criminal Action, the court found that the claims were barred by the litigation privilege, failed to state specific facts against the MBT board members, and were also barred by the statute of limitations. (Compendium, Ex. 14 at pp. 6–8.)

(4) The May 2025 Action

On May 12, 2025, while Colosi's SACC in the Hann Action was still pending, Colosi

filed a complaint against MBT in an entirely new case for invasion of privacy and intentional infliction of emotional distress, styled *Colosi v. Montecito Bank & Trust et al.*, Santa Barbara Superior Court case No. 25CV02941 (May 2025 Action). (Compendium, Ex. 16.) Colosi's claims in the May 2025 Action were premised on the same allegations she was asserting in the Hann Action SACC, forcing MBT to demur. (Compendium, Exs. 10, 16.) On November 3, 2025, Colosi dismissed the complaint in the May 2025 Action without prejudice, but only after the Court dismissed the Hann Action SACC. (Compendium, Ex. 17.)

(5) The Current Action

On November 21, 2025, approximately two months after Colosi's claims in the Hann

Action SACC were dismissed with prejudice and 18 days after the May 2025 Action was voluntarily dismissed without prejudice, Colosi filed the present lawsuit against MBT and The Medical Board of California. In her complaint, Colosi asserts one cause of action titled as, "Invasion of Privacy, Unlawful Search and Seizure, and Unlawful Loss of Liberty alleged against both Defendants." (Compl.) Colosi realleges the same basic facts that formed the basis of her claims in the Hann Action SACC. (Ibid.) Colosi alleges, "[t]he named defendants' actions to invade plaintiff's privacy, to offer unlawfully obtained and false evidence in multiple proceedings, to unlawfully and proximately cause plaintiff's loss of liberty ... and to conduct numerous warrantless searches and seizures violates plaintiff's civil rights ... and displays outrageous private entity and government conduct." (Compl., ¶ 21.)

(6) The Court's March 27, 2026, Order Partially Staying this Action

On March 27, 2026, the court held a case management conference in this

action. All parties attended this hearing. The court stayed all other proceedings in this action pending the resolution of MBT's motion to declare Colosi a vexatious litigant and for related relief. Colosi opposes MBT's motion.

Analysis:

(1) Requests for Judicial Notice

MBT requests judicial notice of the following court records:

1. Minute Order re: Montecito Bank & Trust's Motion for Discharge of Liability, filed on October 13, 2023, in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 1, pursuant to Evidence Code section 452, subdivisions (c) and (d).
2. Order Granting Montecito Bank & Trust's Motion for Discharge of Liability, filed on November 11, 2023, in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 2, pursuant to Evidence Code section 452, subdivisions (c) and (d).
3. Notice of Appeal, filed in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 3, pursuant to Evidence Code section 452, subdivisions (c) and (d).
4. Appellant Theresa Colosi's Opening Brief filed in the Second Appellate District Court of the State of California, Case No. B340096, attached to the Compendium of Exhibits as Exhibit 4, pursuant to Evidence Code section 452, subdivisions (c) and (d).
5. Motion to Set Aside All Judgments and Orders of the Trial Court and to Order Montecito Bank & Trust to Restore Defendant Colosi's Property Forthwith, filed in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 5, pursuant to Evidence Code section 452, subdivisions (c) and (d).
6. Notice of Entry of Order, December 16, 2025, and attached Minute Order of December 12, 2025, filed in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 7, pursuant to Evidence Code section 452, subdivisions (c) and (d).
7. Cross-Complaint, filed on April 19, 2024, in Cindy M Hann vs Theresa Lynn Colosi, Santa Barbara Superior Court Case No. 20CV01984, attached to the Compendium of Exhibits as Exhibit 8, pursuant to Evidence Code section 452, subdivisions (c) and (d).
8. First Amended Cross-Complaint, June 11, 2024, in Cindy M Hann vs Theresa Lynn Colosi, Santa Barbara Superior Court Case No. 20CV01984, attached to the Compendium of Exhibits as Exhibit 9, pursuant to Evidence Code section 452, subdivisions (c) and (d).
9. Second Amended Cross-Complaint, filed on March 3, 2025, in Cindy M Hann vs Theresa Lynn Colosi, Santa Barbara Superior Court Case No. 20CV01984, attached to the Compendium of Exhibits as Exhibit 10, pursuant to Evidence Code section 452, subdivisions (c) and (d).
10. Declaration of James Jefferson in Support of Cross Defendant Montecito Bank & Trust's Motion to Quash Subpoenas Duces Tecum, filed in Cindy M Hann vs Theresa Lynn Colosi, Santa Barbara Superior Court Case No. 20CV01984, attached to the Compendium of Exhibits as Exhibit 11, pursuant to Evidence Code section 452, subdivisions (c) and (d).
11. Order Granting Cross-Defendant Montecito Bank & Trust's Motion to Quash Subpoenas Duces Tecum of Montecito Bank & Trust Personnel, May 13, 2025, in Cindy M Hann vs Theresa Lynn Colosi, Santa Barbara Superior Court Case No. 20CV01984, attached to the Compendium of Exhibits as Exhibit 12, pursuant to Evidence Code section 452, subdivisions (c) and (d).

12. Order Dismissing Cross-Complaint Against Montecito Bank & Trust, Janet Garufis, George Leis, James Jefferson, and Amy Hinkens with Prejudice, September 29, 2025, in Cindy M Hann vs Theresa Lynn Colosi, Santa Barbara Superior Court Case No. 20CV01984, attached to the Compendium of Exhibits as Exhibit 13, pursuant to Evidence Code section 452, subdivisions (c) and (d).
13. Minute Order re: Montecito Bank & Trust's Demurrer, August 11, 2025, in Cindy M Hann vs Theresa Lynn Colosi, Santa Barbara Superior Court Case No. 20CV01984, attached to the Compendium of Exhibits as Exhibit 14, pursuant to Evidence Code section 452, subdivisions (c) and (d).
14. Request for Dismissal, August 11, 2025, in Cindy M Hann vs Theresa Lynn Colosi, Santa Barbara Superior Court Case No. 20CV01984, attached to the Compendium of Exhibits as Exhibit 15, pursuant to Evidence Code section 452, subdivisions (c) and (d).
15. Complaint, filed on May 12, 2025, in Theresa Colosi v. Montecito Bank & Trust, et al., Santa Barbara Superior Court Case No. 25CV02941, attached to the Compendium of Exhibits as Exhibit 16, pursuant to Evidence Code section 452, subdivisions (c) and (d).
16. Request for Dismissal, filed November 3, 2025, in Theresa Colosi v. Montecito Bank & Trust, et al., Santa Barbara Superior Court Case No. 25CV02941, attached to the Compendium of Exhibits as Exhibit 17, pursuant to Evidence Code section 452, subdivisions (c) and (d).
17. Response and Opposition to Interpleader, filed on June 2, 2023, in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 18, pursuant to Evidence Code section 452, subdivisions (c) and (d).
18. Notice of Motion and Motion for Permanent Injunction, filed on June 12, 2023, in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 19, pursuant to Evidence Code section 452, subdivisions (c) and (d).
19. Reply to Plaintiff MBT's Opposition to Defendant Theresa Colosi's Motion for Permanent Injunction, July 18, 2023, filed on July 18, 2023, in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 20, pursuant to Evidence Code section 452, subdivisions (c) and (d).
20. Minute Order re: Theresa Colosi's Motion for Permanent Injunction, July 21, 2023, in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 21, pursuant to Evidence Code section 452, subdivisions (c) and (d).
21. Opposition to MBT's Motion for Discharge of Liability and Award of Costs and Fees, filed in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 22, pursuant to Evidence Code section 452, subdivisions (c) and (d).
22. Notice of Motion and Motion to Dismiss; Declaration, filed on September 12, 2023, in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 23, pursuant to Evidence Code section 452, subdivisions (c) and (d).
23. Supplement to Defendant Colosi's Motion to Dismiss, filed on October 5, 2023, in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 24, pursuant to Evidence Code section 452, subdivisions (c) and (d).

24. Motion in Limine, filed on June 6, 2024, in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 25, pursuant to Evidence Code section 452, subdivisions (c) and (d).

25. Minute Order re: Theresa Colosi's Motion in Limine, June 10, 2024, in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 26, pursuant to Evidence Code section 452, subdivisions (c) and (d).

26. Notice of Motion and Motion; Memorandum of Points and Authorities; and Declaration in Support of Motion to Compel Responses to Requests for Production of Documents, Set One and Monetary Sanctions, filed on August 10, 2023, in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 27, pursuant to Evidence Code section 452, subdivisions (c) and (d).

27. Order on Ex Parte Application to Quash Subpoena Duces Tecum, entered June 10, 2024, in Montecito Bank & Trust v. Theresa Colosi, et al., Santa Barbara Superior Court case No. 22CV04591, attached to the Compendium of Exhibits as Exhibit 31, pursuant to Evidence Code section 452, subdivisions (c) and (d).

28. California Supreme Court opinion denying Theresa Colosi's Petition for Writ of Habeas Corpus, February 14, 2024, Case No. S283471, attached to the Compendium of Exhibits as Exhibit 32, pursuant to Evidence Code section 452, subdivisions (c) and (d).

Colosi requests judicial notice of the following court records and statutes:

1. Santa Barbara County Superior Court Figueroa (CR) Division trial court order issued March 22, 2023, in case No. 19CR12190, and transcript of the hearing and of defense's Motion to Suppress, attached as Exhibit A;

2. Penal Code sections 1538.5 and 1540;

3. Government Code sections 7461, 7470, 7471, 7487, 7489, and 7491;

4. California Constitution Article 1, sections 1 and 13; U. S. Constitution Amendments IV and XIV.

Pursuant to Evidence Code section 452, subdivision (d), judicial notice may be taken of the records of any court of this state or any court of record of the United States or of any state of the United States. The court will grant MBT's request for judicial notice. (See Evid. Code, § 452, subds. (c)-(d).) The court will also grant Colosi's request. (See *ibid.*) To the extent granted, judicial notice of the documents described above extends to the existence of court records and statutes but does not extend to the truth of any facts contained in the documents that are subject to dispute or to any hearsay or irrelevant matter. (See *Johnson & Johnson v Superior Court* (2011) 192 Cal.App.4th 757, 768.)

(2) Vexatious Litigant Statutes

"The vexatious litigant statutes were created to curb misuse of the court system by those acting in propria persona who repeatedly file groundless lawsuits or attempt to relitigate issues previously determined against them." (*Goodrich v. Sierra Vista Regional Medical Center* (2016) 246 Cal.App.4th 1260, 1265.) "The constant suer for himself becomes a serious problem to others than the defendant he dogs. By clogging court calendars, he causes real detriment to those who have legitimate controversies to be determined and to the taxpayers who must provide the courts." (*Taliaferro v. Hoogs* (1965) 237

Cal.App.2d 73, 74.)

Code of Civil Procedure section 391, subdivision (b), defines a vexatious litigant as a person who does, among other things, any of the following:

“After a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in propria persona, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined.

“In any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.” (Code Civ. Proc., § 391, subd. (b)(2), (b)(3).)

Voluntarily dismissed actions count towards the adversely determined litigations. “An action which is ultimately dismissed by the plaintiff, with or without prejudice, is nevertheless a burden on the target of the litigation and the judicial system, albeit less of a burden than if the matter had proceeded to trial. A party who repeatedly files baseless actions only to dismiss them is no less vexatious than the party who follows the actions through to completion. The difference is one of degree, not kind.” (Tokerud v. Capitolbank Sacramento (1995) 38 Cal.App.4th 775, 779.)

Here, the complaint in this action seeks redress from MBT for alleged invasion of privacy, unlawful search and seizure, and unlawful loss of liberty. The complaint alleges that the search warrant in the Underlying Criminal Action was unlawful and that MBT’s disclosures in response to an unlawful search warrant caused Colosi’s incarceration and loss of liberty. (Compl., ¶¶ 2-21.) The court has already addressed these issues in relation to MBT’s demurrer to Colosi’s SACC in the Hann Action. (Compendium, Ex. 14.) On August 11, 2025, the court determined as to a virtually identical cause of action, “[t]his cause of action is therefore barred by the litigation privilege of Civil Code section 47, subdivision (b) as against all MBT Cross-Defendants. The demurrer to the fifth cause of action will therefore be sustained without leave to amend on this ground.” (Compendium, Ex. 14 at p. 6.) The court also ruled that these claims were barred by the statute of limitations. (Id. at pp. 6-8.)

The court finds that Colosi’s complaint in this action constitutes the frivolous re-litigation of the same issues addressed and finally resolved by the court in the Hann Action. (See Comp.; Compendium, Exs. 10, 14.) The court also finds that Colosi’s repeated attempts to relitigate these same issues pertaining to the Underlying Criminal Action search warrant in multiple civil actions, by multiple motions and pleadings, including in the Interpleader Action, the Haan Action, the May 2025 Action, and this action, also constitutes frivolous litigation conduct. Colosi’s opposition to this motion is yet another attempt to relitigate these same issues. Colosi has presented no rational argument that MBT is legally responsible for Colosi’s incarceration.

The court further finds that Colosi’s actions in seeking to compel live testimony at various law and motion hearings in the Interpleader Action was also repeated and frivolous, and intended solely for the purposes of delaying resolution at these issues on the merits and harassing MBT. For all the reasons stated herein, the court will grant MBT’s motion to declare Colosi a vexatious litigant pursuant to Code of Civil Procedure section 391, subdivisions (b)(2) and (b)(3).

(3) Prefiling Order

“In addition to any other relief provided in this title, the court may, on its own motion or the motion of any party, enter a prefiling order which prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. Disobedience of the order by a vexatious litigant may be punished as a contempt of court.” (Code Civ. Proc., § 391.7, subd. (a).)

"The presiding justice or presiding judge shall permit the filing of that litigation only if it appears that the litigation has merit and has not been filed for the purposes of harassment or delay. The presiding justice or presiding judge may condition the filing of the litigation upon the furnishing of security for the benefit of the defendants as provided in Section 391.3." (Code Civ. Proc., § 391.7, subd. (b).)

"The clerk may not file any litigation presented by a vexatious litigant subject to a prefiling order unless the vexatious litigant first obtains an order from the presiding justice or presiding judge permitting the filing. If the clerk mistakenly files the litigation without the order, any party may file with the clerk and serve, or the presiding justice or presiding judge may direct the clerk to file and serve, on the plaintiff and other parties a notice stating that the plaintiff is a vexatious litigant subject to a prefiling order as set forth in subdivision (a). The filing of the notice shall automatically stay the litigation. The litigation shall be automatically dismissed unless the plaintiff within 10 days of the filing of that notice obtains an order from the presiding justice or presiding judge permitting the filing of the litigation as set forth in subdivision (b). If the presiding justice or presiding judge issues an order permitting the filing, the stay of the litigation shall remain in effect, and the defendants need not plead, until 10 days after the defendants are served with a copy of the order." (Code Civ. Proc., § 391.7, subd. (c).)

The court includes the prefiling order provisions of Code of Civil Procedure section 391.7 in its order designating Colosi a vexatious litigant.

(4) Posting of Security

MBT is further requesting that Colosi be ordered to post security of \$15,000 under Code of Civil Procedure sections 391.1 and 391.3. (See Cox Decl., ¶¶ 2-4.)

"In any litigation pending in any court of this state, at any time until final judgment is entered, a defendant may move the court, upon notice and hearing, for an order requiring the plaintiff to furnish security or for an order dismissing the litigation pursuant to subdivision (b) of Section 391.3. The motion for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant." (Code Civ. Proc., § 391.1, subd. (a).)

"[I]f, after hearing the evidence upon the motion, the court determines that the plaintiff is a vexatious litigant and that there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant, the court shall order the plaintiff to furnish, for the benefit of the moving defendant, security in such amount and within such time as the court shall fix." (Code Civ. Proc., § 391.3, subd. (a).)

"When considering a motion to declare a litigant vexatious under section 391.1, the trial court performs an evaluative function. The court must weigh the evidence to decide both whether the party is vexatious based on the statutory criteria and whether he or she has a reasonable probability of prevailing. [Citations.] Accordingly, the court does not assume the truth of a litigant's factual allegations and it may receive and weigh evidence before deciding whether the litigant has a reasonable chance of prevailing." (Golin v. Allenby (2010) 190 Cal.App.4th 616, 635.)

The court finds that Colosi's complaint in this action will likely fail for the same reasons the court sustained the demurrer to the SACC in the Hann Action in favor of MBT without leave to amend. MBT's actions pertaining to information disclosed in response to a search warrant in the Underlying Criminal Action is likely protected by the litigation privilege. These claims are also likely barred by the statute of limitations. Similarly, the various filings and related litigation conduct by MBT in the Interpleader Action, the Haan Action, the May 2025 Action, and this action, are also likely protected by the litigation privilege. Colosi's complaint in this action does not appear to state a valid cause of action against MBT.

The court has reviewed Colosi's opposition. The court finds that Colosi's opposition reargues the same issues that were previously rejected by this court in the Interpleader Action and the Haan Action, and voluntarily dismissed by Colosi in the May 2025 Action. After considering the evidence and argument presented by the parties, the court finds there is no reasonable probability that Colosi can prevail against MBT in this action. For all these reasons, the court will grant MBT's

request that Colosi furnish an undertaking in the amount of \$15,000. (See Cox Decl., ¶¶ 2-4.)

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US